

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #01	CCRB Case #: 201504385	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/30/2015 4:49 PM	Location of Incident: 2224 East 2nd Avenue	18 Mo. SOL 11/30/2016	Precinct: 23		
Date/Time CV Reported Sat, 05/30/2015 6:01 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 05/30/2015 6:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Willus Murray	00375	927253	NARCBMN
2. DT3 Jeremy Ramos	285	943716	NARCBMN
3. SGT Michael Korabel	01763	925558	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jeremy Ramos	Abuse: Det. Jeremy Ramos stopped individuals.	A . Substantiated
B . DT3 Willus Murray	Abuse: Det. Willus Murray stopped individuals.	B . Substantiated
C . DT3 Jeremy Ramos	Abuse: Det. Jeremy Ramos searched an individual.	C . Substantiated
D . DT3 Willus Murray	Abuse: Det. Willus Murray searched an individual.	D . Unsubstantiated
E . SGT Michael Korabel	Abuse: Sgt. Michael Korabel impeded § 87(2)(b) s ability to film the incident.	E . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 30, 2015, at approximately 4:49 p.m., § 87(2)(b) was sitting on a bench outside of NYCHA building 2224 East 2nd Avenue in Manhattan and smoking cigarettes with three other males, two of whom he identified as “§ 87(2)(b)” and “§ 87(2)(b)”. § 87(2)(b) did not know the last names of “§ 87(2)(b)” or “§ 87(2)(b)” and did not have any information on the third male. § 87(2)(b) noticed an unmarked, black Dodge Charger drive by the males, then stop, back up, and park. § 87(2)(b) began filming with his cell phone camera as Sgt. Michel Korabel, Det. Jeremy Ramos, and Det. Willus Murray approached the males. § 87(2)(b) is part of an activist group called the “Copwatch Patrol Unit” whose mission is to observe and film officers interacting with civilians. Det. Murray, and Det. Ramos stopped three unidentified males (**Allegations A and B**). While Det. Murray and Det. Ramos interacted with § 87(2)(b) and Male4, Sgt. Korabel spoke to § 87(2)(b). After a short period of time, Det. Ramos searched “§ 87(2)(b)” (**Allegation C**). At the same time, Det. Murray allegedly searched Male4 (**Allegation D**). While this was going on, Sgt. Korabel attempted to impede § 87(2)(b)’s filming of the incident by telling § 87(2)(b) to put his phone down twice (**Allegation E**). § 87(2)(b) failed to comply and told Sgt. Korabel that he had the right to film. Sgt. Korabel told § 87(2)(b) that he did not like being filmed, but did not take any further action against § 87(2)(b). Shortly afterward, the officers left the scene. No arrests or summonses were made.

Video footage of the incident was obtained from § 87(2)(b)’s YouTube channel:



201504385_20151023_1448_DM.mp4

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation, § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- On August 14, 2015, a FOIL registration confirmed that § 87(2)(b) has not filed any notices of claim for this incident (03 Board Review).

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved with 13 other CCRB cases involving 27 allegations. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b)

- Sgt. Korabel has been a member of the NYPD for 15 years and has seven previous CCRB cases involving 14 allegations including four substantiated allegations. § 87(2)(g)
- Det. Ramos has been a member of the NYPD for eight years and has one previous CCRB case involving one allegation and no substantiated allegations.
- Det. Murray has been a member of the NYPD for 14 years and has five previous CCRB cases involving 11 allegations with one substantiated allegation. § 87(2)(g)

Potential Issues

- None of the victims were available or identified other than § 87(2)(b) (see IA's pertaining to attempts to contact the other victims).
- No independent witnesses were identified for this case.

Findings and Recommendations

Allegations not pleaded

- Although § 87(2)(b) said during his interview that Sgt. Korabel said he was stopped for throwing a cigarette on the ground, § 87(2)(b)'s video shows that he never attempted to leave the scene or asked Sgt. Korabel if he was free to leave. Furthermore, Sgt. Korabel never told § 87(2)(b) he was stopped, never asked him any investigative questions, and denied during his interview that § 87(2)(b) was part of the stop. § 87(2)(g) (01 and 05 Board Review).

Allegation A –Abuse of Authority: Det. Jeremy Ramos stopped individuals.

Allegation B –Abuse of Authority: Det. Willus Murray stopped individuals.

§ 87(2)(b) said that he, "§ 87(2)(b)" § 87(2)(b) and Male4 were smoking cigarettes on a bench outside of 2224 East 2nd Avenue in Manhattan, but that neither he nor any of the other males had any alcohol or any drugs other than tobacco on their persons. § 87(2)(b) said that he observed an unmarked black Dodge Charger drive past where he and the other males were seated. This vehicle then stopped, backed up, and parked in a no parking zone. At this point, § 87(2)(b) assumed that there were officers in the car and that they were about to stop § 87(2)(b)'s group. § 87(2)(b) then observed Det. Ramos, Det. Murray, and Sgt. Korabel exit their vehicle, approach, and stop "§ 87(2)(b)" "§ 87(2)(b)" and Male4 (01 Board Review).

Det. Ramos said that as the officers drove past 2224 East 2nd Avenue in their vehicle, he observed, from the passenger seat, a group of males sitting on a bench to his left approximately 50 feet away. While watching the males, Det. Ramos observed the male § 87(2)(b) identified as "§ 87(2)(b)" hand an unseen object to Male4 who then put the object onto the ground. Det. Ramos was not able to describe the object being passed between the males. Det. Ramos also did not

recall if either male reached into his pocket before or after the exchange and could not see whether any US Currency was exchanged between the males. Although he was not able to clearly see what was exchanged, based on his training and experience as a narcotics officer, Det. Ramos suspected that the exchange between the males was part of a drug transaction. Det. Ramos added that the 23rd Precinct at large was a drug prone location. Det. Ramos informed Det. Murray and Sgt. Korabel of his suspicions by saying, “I think I see something over there.” Det. Murray also acknowledged seeing something. After the detectives parked their car, they walked towards the males and Det. Ramos saw a container concealed in a brown paper bag sitting between the feet of § 87(2)(b). Det. Ramos thought the container in the bag may have contained alcohol based on the way it was concealed, but he never confirmed this or learned that it was confirmed as alcohol (06 Board Review).

Det. Murray said that after Det. Ramos pointed out the group of males, he observed § 87(2)(b) lean towards Male4, but could not see if any objects were exchanged. Det. Murray said that as the detectives approached the males, one of the detectives asked “What’s going on?” to the males collectively. Male4, replied, “We were just drinking and passing this bottle back and forth.” Det. Murray then observed a container of alcohol concealed in a brown paper bag sitting in front of the males. When shown § 87(2)(b)’s video, Det. Murray explained that at 00:15 he was looking inside a brown paper bag that contained an open container of alcohol. Det. Murray did not remember what type of alcohol was in the bag. Det. Murray also said that the detectives used their discretion and never confiscated any alcohol, issued any summonses for drinking alcohol in public, or took any police action regarding the alcohol. Det. Murray said that Male4 identified himself as a School Safety Agent (07 Board Review).

Sgt. Korabel initially said that the detectives thought that they saw the males drinking alcohol. Sgt. Korabel added that Det. Murray informed him as they drove by the males that he thought he saw a hand to hand drug transaction. Det. Murray did not provide any additional details to Sgt. Korabel prior to the stop and Sgt. Korabel did not witness the alleged drug transaction himself. As the detectives walked towards the males, Sgt. Korabel thought that he saw one of the males sipping a beverage out of a bottle or a can concealed in a brown paper bag. Sgt. Korabel believed that this container may have contained alcohol based on his training and experience as a police officer, but this was never confirmed by any of the officers to Sgt. Korabel’s knowledge (08 Board Review).

In § 87(2)(b)’s video of the incident, no brown paper bag can ever be seen. However, § 87(2)(b)’s video moves back and forth between where Sgt. Korabel is standing and the other males are standing. At 00:15 Det. Murray can be observed reaching downwards off camera (see Snagit clip# 1).



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People v. DeBour and CPL 140.50 (1) both say that officers may stop an individual if they have reasonable suspicion that a felony or misdemeanor has been committed (People v. DeBour,

49 AD2d 1038) (09 Board Review) (15. Board Review - CPL). People v. Edmond says that officers cannot conduct a level three stop for petty offenses (15. Board Review).

The officers all said that the original reason they approached the males was to investigate a suspected drug transaction observed by Det. Ramos. During his interview, Det. Ramos described seeing “§ 87(2)(b)” pass an object to Male4, who then put the object onto the ground. Det. Ramos was not able to describe any details of the object, did not observe any US currency exchanged, or observe any other actions indicative of a narcotics sale. For his part, Det. Murray only described “§ 87(2)(b)” as leaning towards the other male and Sgt. Korabel did not observe this interaction at all. On approaching the males, the officers all consistently described observing a suspected container of alcohol concealed in a brown paper bag near the males, with Sgt. Korabel observing a male drinking from the container. Det. Murray was the only officer who testified to confirming that the open container contained alcohol, but he was not able to describe the container or the type of alcohol within. Det. Murray also testified that Male4 admitted that he and the other males were drinking from the container, but this was not corroborated by Det. Ramos or Sgt. Korabel. The officers all testified that no summonses were issued for consumption of alcohol in public and no alcohol containers were confiscated from the males. § 87(2)(b)’s video never shows a container concealed in a brown paper bag as consistently described by the detectives. However, § 87(2)(b)’s video is not constantly panned to the area that § 87(2)(b) and the fourth male were occupying when the detectives approached. § 87(2)(b)’s video does show Det. Murray bending as though he was looking at something on the ground in an area not visible on the video, which would be consistent with his testimony that he looked inside a brown paper bag that contained a container of alcohol that was on the ground.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A** and **B**, be *substantiated*.

Allegation C –Abuse of Authority: Det. Jeremy Ramos searched § 87(2)(b)

§ 87(2)(b) said that Det. Ramos searched “§ 87(2)(b) front pants pockets and also his waistline. Det. Ramos also may have looked at his ID, but did not appear to use his phone or radio to run “§ 87(2)(b) name. § 87(2)(b) did not provide any additional details (01 Board Review).

§ 87(2)(b)'s video of the incident shows Det. Ramos motion towards his chest with both hands and appears to say something to § 87(2)(b) but this statement could not be heard. Immediately afterward, Det. Ramos appears to reach downward towards “§ 87(2)(b) legs while “§ 87(2)(b) is holding his hands above his head. “§ 87(2)(b) appears to hold his ID in one of his hands. At 00:15 Det. Ramos appears to be manipulating the outside of “§ 87(2)(b) right pants cargo pocket with his left hand. The video is not clear enough to show whether the flap of the pocket is open or closed (Snagit clip# 2).



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Det. Ramos said that he asked “§ 87(2)(b) to stand up and asked him if he had anything on him that he was not supposed to have. “§ 87(2)(b) said that he did not and asked why he was being stopped. Det. Ramos told “§ 87(2)(b) that he thought he saw “§ 87(2)(b) give something to Male4. “§ 87(2)(b) responded by saying that he did not have anything he was not supposed to have. Det. Ramos asked “§ 87(2)(b) if he was sure. “§ 87(2)(b) responded by saying, “No look. You can search me.” Then, without any instruction, “§ 87(2)(b) began taking various unknown items out of his pocket. Det. Ramos told “§ 87(2)(b) to stop removing things from his pockets and to relax, but “§ 87(2)(b) kept taking things out of his pockets and calmly showing the items to Det. Ramos. Det. Ramos said that he then took these items away from “§ 87(2)(b) and frisked the outside of “§ 87(2)(b) pockets and waistline without going inside. Det. Ramos added that he may have held a pocket open to look inside, but did not stick his hand in. On being shown § 87(2)(b)'s video of the incident at 00:15, Det. Ramos explained that he was holding “§ 87(2)(b) right pants cargo pocket open to look inside for drugs or a weapon, but never stuck his hand in. Det. Ramos said that the flap of the pocket was already open when he pulled on it. Det. Ramos took this action in order to check for a weapon. Det. Ramos felt the frisk was necessary, because “§ 87(2)(b) was standing within arm's reach of the detective, kept taking items out of his pockets, and had his hands near his waistline. Det. Ramos did not observe any bulges on “§ 87(2)(b) because “§ 87(2)(b) had already removed his items from his pockets. Det. Ramos also said that “§ 87(2)(b) previously provided consent to be searched. Det. Ramos described the entire interaction as calm (06 Board Review).

Neither Det. Murray nor Sgt. Korabel observed any searches, heard any of the males complain of any searches, or heard any males provide consent for any searches (07 and 08 Board Review).

In *People v. Rainey*, the court found that an officer was not justified in looking inside a suspect's pocket to verify that a suspected pager was not a gun disguised as a pager after he frisked the suspect's pocket and found a hard square object (10 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be *unsubstantiated*.

Allegation E –Abuse of Authority: Sgt. Michael Korabel impeded § 87(2)(b) s ability to film the incident.

§ 87(2)(b) s video of the incident shows Sgt. Korabel walks towards him and say to § 87(2)(b) “Put your phone down.” § 87(2)(b) replies, “Huh?” Sgt. Korabel repeats, “Put your phone down. If you don’t mind.” § 87(2)(b) told Sgt. Korabel that he was not doing anything wrong. Sgt. Korabel replied, “But I don’t like being recorded.” § 87(2)(b) told Sgt. Korabel that everything he recorded was being live streamed over the internet. Sgt. Korabel then told § 87(2)(b) that that was fine. During and after this conversation, Sgt. Korabel appears to be standing directly in front of § 87(2)(b) § 87(2)(b) never complies with the instruction to put his phone down and Sgt. Korabel does not take any further action (see Snagit clip# 3).



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In addition to Sgt. Korabel’s instructions to put his phone down, § 87(2)(b) alleged that Sgt. Korabel walked in front of him in an additional attempt to obstruct his recording (01 Board Review).

Sgt. Korabel initially said that he may have told § 87(2)(b) to put his phone down, because the footage would have been admissible in court and he was not sure if any of the males wanted § 87(2)(b) to film them. Sgt. Korabel also said that he may have walked closer to § 87(2)(b) in order to speak with him, but denied that this movement was any attempt to interfere with his recording. Sgt. Korabel said that he did not remember § 87(2)(b) doing anything to interfere with the stop, but he did not remember § 87(2)(b) s specific actions. Sgt. Korabel added that he may have told § 87(2)(b) to back up at some point. After being shown § 87(2)(b) s video of the incident, Sgt. Korabel clarified that he told § 87(2)(b) to put his phone down, because he did not like to be filmed. He also said that immediately prior to his comments at 01:05, § 87(2)(b) moved a little closer towards the males being stopped and § 87(2)(b) s movement may have been a factor in telling him to put his phone down (08 Board Review).

Neither Det. Ramos nor Det. Murray remembered observing or hearing Sgt. Korabel’s conversation with § 87(2)(b) (06 and 07 Board Review).

According to a Finest Message dated August 6, 2014, officers are not allowed to interfere with an individual's ability to record a police interaction either by blocking or obstructing cameras, or ordering individuals to cease recording. Officers may only take action if a person interferes with police action and mere recording of an incident does not constitute interference (11 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be *substantiated*.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Squad 1:

Investigator:	_____	_____	_____
	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date